

The Priority of Persons

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*So, since all law is made for the sake of human beings, we should speak first of the status of persons.*¹
Justinian, *Digest* 1. 5. 2

*Knowledge of law amounts to little if it overlooks the persons for whose sake law is made.*²
Justinian, *Institutes* 1. 2. 12

What it is to be a person, and why it matters that one is, are issues no longer thematic in general accounts of law. But the very concept of law, of an existing and projected reality profoundly, and deliberately, different from both anarchy and tyranny is shaped by the recognition that (i) we human beings are all persons and each other's equals in that respect even if in no other; (ii) persons of sufficient maturity and health can understand and communicate what they and other persons mean, and can intend and choose many other ways of behaving, too; and (iii) persons, their well-being, and their intentions matter in ways that nothing else in our environment does. This essay outlines some reasons for bringing these issues, rather neglected in modern jurisprudence, back into focus.

I LAW IS 'FOR THE SAKE OF . . .'

Hart's rejection of 'the positivist thesis that "law may have any content" ' appealed to the 'natural necessity' of 'the minimum forms of protection for persons, property, and promises which are . . . indispensable features of municipal law', 'if it is to serve the minimum purposes of beings constituted as men are'.³ A 'natural' necessity of this kind is in the first instance a *rational* necessity. As Hart himself remarks, his discussion of the minimum content of law⁴ is trying to identify 'the distinctively *rational* connection between natural facts and the content of legal and moral rules'.⁵ And this 'connection' is 'rational' given the 'minimum purposes' or 'natural aims' of 'beings constituted as men are'. The rationality, then, is that of practical reasoning - reasoning along the following lines (for example): we want to survive; but, given that we are vulnerable and the altruism of others is limited, we cannot survive without rules prohibiting the free use of violence; *so* such rules are necessary and other rules are worthless without these.

¹ 'Cum . . . hominum causa omne ius constitutum sit, primo de personarum statu . . . dicemus' (emphasis added, here and elsewhere unless otherwise indicated).

² 'Nam parum est ius nosse si personae quarum causa statutum est ignorentur.'

³ H.L.A. Hart, *The Concept of Law* (Oxford University Press, Oxford, [1961], 2nd edn. 1994) 199. The word omitted is 'similarly', referring (Q the same 'setting of natural facts and aims, which make sanctions both possible and necessary in a municipal system' (ibid.). The Postscript, ibid. 248-9, seems to retreat from the book's clear and well argued rejection of the above-described 'positivist thesis': '[I]ike other forms of positivism my theory makes no claim to identify the point or purpose of law and legal systems as such . . . In fact I think it quite vain to seek any more specific purpose which law as such serves beyond providing guides to human conduct and standards of criticism of such conduct.' But ibid. 251 reverts to speaking of 'aims [besides certainty] which law should cherish'.

⁴ He called it 'the minimum content of natural law' but meant, rather, the minimum content of positive law (content which, being necessary, one can call natural law).

⁵ Ibid. 193, where the treatment of the minimum content begins: 'it is important to observe that in each case the facts mentioned afford a *reason* why, given survival as an aim, law and morals should include a specific content' (Hart's emphasis).

Though Hart spoke often enough of human beings' natural aims, plural, his official list of them famously admitted only the aim just mentioned: 'survival'.⁶ Fortunately for jurisprudence, his real list of the minimum purposes which give law and legal system their complex, shaping point tacitly went wider. It included the aims or purposes relative to which people - not least Hart and the readers he anticipated - count certain aspects of 'pre-legal' conditions as 'defects', defects to which the minimally adequate response is, as Hart argues, the 'amenity' of power-conferring rules and the 'remedy' of 'secondary rules', the amenities and remedies which make law what it essentially is.⁷

Law, then, is for the sake of serving certain purposes of 'beings constituted as men are', and Hart speaks of serving these purposes as law's *point*. For Ronald Dworkin, on the other hand, 'the most abstract and fundamental *point* of legal practice' is: 'to guide and constrain the power of government [by insisting that] force not be used or withheld . . . except as licensed or required by individual rights and responsibilities flowing from past political decisions about when collective force is justified'.⁸ And Dworkin favours a specific conception of that point, 'law as integrity'; 'law insists', he holds, that collective force be licensed by rights and responsibilities 'flowing from' past decisions, in order that the law will thereby benefit 'society' precisely 'by securing a kind of equality among citizens'.⁹ And rights and responsibilities only 'flow from' a political community's decisions if that community's practices 'show not only concern but an *equal* concern for all members'.¹⁰

So law's point, on Dworkin's conception, is to serve the interests of 'citizens' or (equivalently, it seems) 'members of the group' - and if it fails to try to do so, it lacks legitimacy, authority, and obligatory force, and fails to justify the coercion it pretends to justify. Dworkin's restriction of the point to citizens or members of the community seems deliberate. True, one of his summaries of the equality condition says that the 'command of integrity assumes that each *person* is as worthy as any other, that each must be treated with equal concern',¹¹ and there is mention of the concept of 'general duties [a group's] members owe equally to persons outside it'.¹² But no such general duty is affirmed as having a place in the account of law's empire, and in its context the summary's reference to 'persons' seems to be no more than shorthand for 'members'. Moreover, membership is said to be a matter of 'genetic or geographical or other historical conditions identified *by social practice*'.¹³ (Some elements of American legal history which I recall in section IV make these restrictions note worthy.)

Thus there are telling differences in the conceptions of law's point proposed by Hart and Dworkin as internal to the very idea of law. For Dworkin, 'securing' an equality understood as incompatible with counting 'some members as inherently less worthy than others'¹⁴ is central to law's point and idea. For Hart, concern for any such kind of equality, though 'deeply embedded in *modern* man'¹⁵ and '*now*

⁶ Ibid. 191. On his argument here, see my *Natural Law and Natural Rights* (Oxford University Press, Oxford, 1980) 30-1, 82.

⁷ See *The Concept of Law*, n. 3 above, 28, 41-2, 196-7 (on the 'huge and distinctive amenity' conferred by the institution of power-conferring rules, 'one of the great contributions of law to social life' and 'a step forward as important to society as the invention of the wheel'); 91-9 (on the remedies required to overcome the defects of a social structure of primary rules of obligation restricting the free use of violence, theft and deception); and 155 (on the union of primary and secondary rules as 'the "essence" of law').

⁸ Ronald Dworkin, *Law's Empire* (Harvard University Press and Fontana Press, 1986) 93.

⁹ Ibid. 95-6.

¹⁰ Ibid. 200 (Dworkin's emphasis).

¹¹ Ibid. 213.

¹² Ibid. 199.

¹³ Ibid. 201.

¹⁴ Ibid. 201.

¹⁵ *The Concept of Law*, n. 3 above, 162.

generally accepted as a statement of an ideal of obvious relevance in the criticism of law',¹⁶ is extrinsic to the concept of law, and the question whether such concern or criticism is warranted 'cannot be investigated'¹⁷ in his book on that concept. But the contrast between these two theorists is softened by Dworkin's noticeable unwillingness to affirm that the equality intrinsic to law's point is the equality of all human beings or of all persons or of any other class of beings identifiable prior to a social practice - a practice, such as the law's, of defining the membership whereby moral and legal rights are 'given'.¹⁸

II ON LAW AS FOR THE SAKE OF ALL

To the thought that the primary element in law's point is not merely promoting 'survival' but respecting and appropriately promoting the survival of *all* human beings within its jurisdiction, Hart has a simple response, tirelessly deployed throughout his work. Legal systems, he reminds us, 'have long endured though they have flouted these principles of justice'.¹⁹ Moreover, 'it is conceivable that there might be a moral outlook which did not put individuals on a footing of reciprocal equality'.²⁰ Well, neither the facts nor the logical possibilities are in doubt. But Hart's own strategy of displaying law as a kind of *reason* apt for being counted as a *common standard* for action undercuts this response. Just as fallacious arguments earn a place in a treatise on argumentation only as instances of what, despite appearances and popularity, is really *not an argument*, so unreasonable kinds of law and legal system should be attended to in legal theory precisely as instances of law diluted with the effluents of what law *essentially opposes*: the arbitrary exercise of one person's or group's power over other persons and groups. Dworkin is right to hold that 'any full theory of law'²¹ will go beyond Hart's explicit and tacit accounts of the benefits which differentiate law from the commands of powerful people, and will include a reference to equality and its moral entailments, 'principles of justice, fairness, and procedural due process'.²² But, as we have seen, he leaves in shadow the question *who* is equal, and should be treated as equal, to whom.

Roman law, which long endured though flouting some of the principles of justice, gave its students and practitioners a better account of law's point. The opening sentence of the *Institutes* directs us towards it: justice, understood precisely as a disposition to act for a certain kind of purpose: 'Justice is the stable and lasting willingness *to give to each his right*'.²³ 'Each' who? The Birks translation quite properly renders this object as 'to acknowledge all men's rights'. For the closing words of the introductory sections (titles 1-3 of book 1) tell us that law exists 'for the sake of persons', and the following sentence, opening the whole treatise on the law of persons, stakes out the essential position: all men are persons.²⁴ Slavery is bluntly defined as the subjection of 'someone' to another's ownership and mastery 'contrary to nature',²⁵ indeed,

¹⁶ Ibid. 206.

¹⁷ Ibid. 206. Notice that in his book *Punishment and Responsibility* (Oxford University Press, Oxford, 1968) he is willing to say things like (at 22): '[j]ustice simply consists of principles . . . which (i) *treat all alike as persons* by attaching special significance to human voluntary action and (ii) forbid the use of one human being for the benefit of others except in return for his voluntary actions against them.'

¹⁸ See Ronald Dworkin, *Life's Dominion* (Alfred A. Knopf, London; Harper Collins, London, 1993)

¹⁹ *The Concept of Law*, n. 3 above, 206.

²⁰ Ibid. 165.

²¹ See *Law's Empire*, n. 8 above, 110.

²² See *ibid.* e.g. 225.

²³ *Digest* 1. 1. pr.; *Institutes (Inst.)* 1. 1. pr.

²⁴ Inst. 1. 2. 12; 1. 3. 1: '[t]he main classification in the law of persons is this: all men are either free or slaves' (*summa itaque divisio de iure personarum haec est, quod omnes homines aut liberi sunt aut servi*).

²⁵ Inst. 1. 3. 2.

more precisely, 'contrary to natural law/right'.²⁶ 'For by natural law/right, from the beginning, all human beings are born free.'²⁷

The requirements of justice-for-persons are thus affirmed and flouted in almost the same breath. No attempt is made to deny that slaves are persons and are their owners' equals in human nature. The institution is presented not as justified but as a fact of life and a product of the arbitrament of war - of sheer power. The frankness, to be sure, has its limits; the fact is here veiled that slavery as an institution of the law is maintained by sheer power, long after any war or war-captivity, and is imposed upon persons who were never party to war. Law's point is stated by Roman law's self-interpretative doctrines, but its implications are not pursued with undeflected practical reasonableness.

Law's point - what, or better, whom it is for the sake of - is identified in the opening words of Article 1 of the Universal Declaration of Human Rights (1948), adopting the phraseology of the Roman jurists: '[a]ll human beings are born free and equal in dignity and rights'. Article 1's subject, 'all human beings', is equated with the preamble's 'all members of the human family' and 'the human person', so that the reference of the remaining articles,²⁸ 'everyone', 'all', and 'no one', is clear. So it is all human beings who are 'equal before the law' and entitled to its 'equal protection' (Article 7); and 'everyone' has the 'right to recognition everywhere as a person before the law' (Article 6).

III ON RULES AS RELATIONSHIPS OF THE DELIBERATING PERSON TO OTHER PERSONS

What is a rule of law? It is certainly not well defined as an 'assemblage of signs declarative of a volition', as Bentham supposed. It is not, indeed, to be defined as any kind of assemblage of signs, for rules of law are no more than evidenced and, in some instances, performatively *effected* by the assembling of such signs. Nor is it, ultimately, the meaning of a set of signs or of an act of signifying, for, while meaning remains constant, validity and obligatoriness may come and go. In my general account of law, I tried to answer the question:

legal thinking (i.e. the law) brings what precision and predictability it can into the order of human interaction by a special technique: the treating of (usually datable) past acts (whether of enactment, adjudication, or any of the multitude of exercises of public and private 'powers') as giving, *now*, sufficient and exclusionary reason for acting in a way *then* 'provided for'. In an important sense the 'existence' or 'validity' of a legal rule can be explained by saying that it simply is this relationship, this continuing relevance of the 'content' of that past juridical act as providing reason to decide and act in the present in the way then specified and provided for.²⁹

The explanation is, I think, sound. But we will get still closer to the bottom of the matter if we say that a rule is a relationship between persons. To say that a rule of positive law exists is to say (i) that its subjects (those upon whom it imposes duties or confers powers, etc.) stand in a certain relationship to the class of person who - whose interests - would be served by the rule-subjects' adherence to their duties or exercise of their powers, etc., and (ii) that those rule-subjects stand in that relationship to persons of that class because they (and in some way also the persons whose interests are thus to be served) stand in a certain

²⁶ Inst. 1. 2 .2.

²⁷ Ibid.: '*servitutes . . . sunt iuri naturali contrariae - iure enim naturali ab initio omnes homines liberi nascebantur.*'

²⁸ There is one exception, Art. 16, which has as its subject 'men and women of full age', to signify that marriage is between persons of opposite sex (gender).

²⁹ *Natural Law and Natural Rights*, n. 6 above, 269 (emphases in original).

relationship to the person(s) whose 'past juridical act' therefore provides 'reason to decide and act in the present in the way then specified and provided for'.

Why give explanatory priority, thus, to the relationship between persons? Well, nothing short of an acknowledgement of the reality and value ('dignity') of other persons, as my equals in reality and value, will suffice to make sense of law's most elementary claims on my attention: its claim to *direct* certain choices of mine, to *override* my self-interest in certain respects, to stipulate *conditions* for lending me its assistance in pursuing my purposes, and so forth.

The history of jurisprudence since Bentham is, in some important respects, the history of failure and regression. The Benthamite strategy of describing, analysing, expounding law as a kind of mechanism supposed to be fully intelligible by reference exclusively to its origin in a 'volition' - excluding, that is to say, all reference to its point (i.e. its rationale) - was pursued with unsurpassable pertinacity and ingenuity, across more than half the twentieth century, by Kelsen. Its *dénouement* was the spectacular debacle in which Kelsen, rightly acknowledging the failure of his legal philosophy from 1911 to 1960³⁰ to explain or even coherently describe law's validity, its normativity, its elementary particle (the norm), and its coherence, severed all links between law and practical reasonableness, embraced even the most open contradiction between legal norms,³¹ denied the possibility of legal reasoning even by subsumption of an uncontroversial instance under the corresponding norm,³² and proposed an admitted fiction as the 'scientific' explanation of validity.³³ Kelsen's lifelong aversion from any resort or reference to practical reasonableness to understand, describe, and interpret law became, in the end, a headlong flight. It was, in the last analysis, an aversion from understanding law as a set of implications of one's seeing the point of serving - respecting and promoting - other persons, and so their interests or well-being, as equal in dignity and value to oneself and one's own. But there is, I am suggesting, no other way of understanding law's claims and directives, their grounds and origins, their force, their limits, and their pathological forms.

IV CONSEQUENCES OF CONSIDERING LAW WITHOUT ACKNOWLEDGING PERSONS AS ITS POINT

Kelsen's refusal to treat human persons and their interests and well-being as the point of law, a refusal generally shared by analytical jurisprudence from Bentham on, is plainest in his treatment of persons in the law, in the first instance 'physical (natural) persons'.³⁴ To say that a human being A has a right 'means only that certain *conduct* of the individual A is the object of a legal right . . . that certain conduct of the individual A is, in a specific way, the contents of a legal norm'.³⁵ Likewise, of course, with A's duties. Hence: '[i]n juristic considerations we are concerned with man only insofar as his *conduct* enters

³⁰ On the phases of Kelsen's work, see e.g. Stanley L. Paulson, 'Four Phases in Hans Kelsen's Theory? Reflections on a Periodization' (1998) 18 *Oxford Journal of Legal Studies* 154-66 at 161.

³¹ Hans Kelsen, *General Theory of Norms* (trans. Michael Hartney, Oxford University Press, Oxford, 1991) 214 ('[a]s far as conflicts between general norms are concerned, it is not the case-as I claimed in my *Pure Theory of Law*- that a conflict of norms which cannot be resolved by the principle *Lex posterior derogat legi priori* makes no sense . . . Each of the two general norms makes sense and both are valid.'). 223-5.

³² Ibid. 232-8.

³³ Ibid. 256 ('the assumption of a Basic Norm - for instance, . . . the Basic Norm of a legal order, "Everyone is to behave as the historically first constitution specifies" - not only contradicts reality, since there exists no such norm as the meaning of an actual act of will, but is also self-contradictory. . . . The cognitive goal of the Basic Norm . . . can be attained only by means of a fiction.')

³⁴ Hans Kelsen, *General Theory of Law and State* (trans. Anders Wedberg, Harvard University Press, Cambridge, Mass., 1945) 95.

³⁵ Ibid. 94.

into the contents of the legal order.³⁶ 'The person exists only insofar as he "has" duties and rights' (these rights pertaining, remember, only to that same person's own conduct); 'apart from them the person has no existence whatsoever.'³⁷ So:

That man and person are two entirely different concepts may be regarded as a generally accepted result of analytical jurisprudence. . . . the physical (natural) person is the personification of a set of legal norms which by constituting duties and rights containing the conduct of one and the same human being regulate the conduct of this being. The relation between the so-called physical (natural) person and the human being with whom the former is often erroneously identified consists in the fact that those duties and rights which are comprehended in the concept of the person all refer to the behavior of that human being.³⁸

In short: juristic thought as such knows nothing of any human person save that person's conduct as specified in legal norms, and does not have as its primary or any concern the interests and well-being of this or any other person.

In the decades of Kelsen's greatest influence, judges confronted by the practical problems of identifying law and rights after revolution turned to Kelsen's account of revolutionary transition. They found no guidance, but some material for rationalizing conclusions reached on other grounds.³⁹ So too, Kelsen's treatment of the person has been called upon to rationalize judicial abdication from such disciplined and critical concern with the interests and well-being of real people.

Of course, such an abdication can and has, from time to time, occurred without the aid or encouragement of analytical jurisprudence. Among the most striking examples is the justly infamous judgment of the Supreme Court of the United States in *Scott v. Sandford* (1857), holding that members of 'the African race' imported into or born in the United States (whether or not they had become free) were not citizens of the United States, and could never be made citizens by Congress even under its undoubted power of naturalization.⁴⁰ The decision rested on the fact that, at the time of the Declaration of Independence (1776) and the founding of the Constitution (1789), public opinion - real enough though the Court vastly exaggerates its unanimity - considered that 'the negro might justly and lawfully be reduced to slavery' as 'beings of an inferior order'.⁴¹ At the time of the framing and adoption of the Constitution, 'neither the class of persons who had been imported as slaves, nor their descendants, whether they had become free' had any 'rights or privileges but such as those who held the power and the Government might choose to grant them'.⁴² And 'the duty of the court is . . . to administer [the instrument they have framed] as we find it, according to its true intent and meaning when it was adopted.'⁴³ The Court's radical failure, then, was to approach its duty of doing justice according to law without recognizing that law, the whole legal enterprise, is for the sake of persons, and that the founders' intentions were therefore to be interpreted - not, as the Court did, so as to promote their background prejudices (from which the Court dissociated itself) against the people they wished to treat as mere property, but rather - in favour of the basic interests and well-being of every person within the jurisdiction so far as was possible without contradicting the Constitution's provisions.

³⁶ Ibid.

³⁷ Ibid.

³⁸ Ibid. 94-5.

³⁹ See Finnis, 'Constitutional Law', in *Annual Survey of Commonwealth Law* [1967] at 83, 91-5, [1968] 75, 112, [1969] 76-7.

⁴⁰ 60 US 393 at 417, 420, *per* Taney CJ for the Court (7: 2).

⁴¹ 60 US at 407, *per* Taney CJ.

⁴² 60 US at 405, *per* Taney CJ.

⁴³ Ibid.

A post-Kelsenian version of *Dred Scott* can be found in the judgment of the New York Court of Appeals in *Byrn v. New York City Health and Hospitals* (1972). Discussing the status of children before birth, the Court says:

What is a legal person is for the law, including, of course, the Constitution, to say, which simply means that upon according legal personality to a thing the law affords it the rights and privileges of a legal person (e.g. Kelsen, *General Theory of Law and State*, pp. 93-109; Paton, *Jurisprudence* [3d ed.], pp. 349-356, esp. pp. 353-354 as to natural persons and unborn children; Friedmann, *Legal Theory* [5th ed.], pp. 521-523; Gray, *The Nature and Sources of the Law* [2d ed.] ch. II). The process is, indeed, circular, because it is definitional. Whether the law should accord legal personality is a policy question which in most instances devolves on the Legislature, subject of course to the Constitution as it has been 'legally' rendered. . . . The point is that it is a policy determination whether legal personality should attach and nor a question of biological or 'natural' correspondence.⁴⁴

The judgment concludes: '[t]here are, then, real issues in this litigation, but they are not legal or justiciable. They are issues outside the law unless the Legislature should provide otherwise.'⁴⁵ Like the Supreme Court's presumptionless positivism in *Dred Scott*, this New York judgment foreshadows the Supreme Court's holding, six months later, in *Roe v. Wade* (1973), that children *en ventre sa mère* are not persons 'within the meaning of the Fourteenth Amendment'.⁴⁶ The Court's reasoning to this holding simply recites the uses of 'person' in the Constitution, remarks that 'none indicates, *with any assurance*, that it has any possible pre-natal application', adds (quite misleadingly)⁴⁷ that 'throughout the major portion of the 19th century prevailing legal abortion practices were far freer than they are today', and then simply says that these two facts 'persuade us' of the conclusion.⁴⁸

What we see in these cases is a notable failure of judicial reasoning, of intellectual and moral responsibility in face of the law's most fundamental point and meaning: the service of persons. Here, where juristic thought should be most fully and carefully deployed, we find abrupt ukase. The failure and the abruptness are not peculiar to the court's dealings with the unborn. In 1886 the Supreme Court was asked to settle the question whether the 14th Amendment's provision forbidding any state to deny the equal protection of the laws to any *person* within its jurisdiction applies to corporations. Its judgment in *Santa Clara County v. Southern Pacific Railroad Co.* is prefaced by the answer: '[t]he court does not wish to hear argument on the question. . . . We are all of opinion that it does.'⁴⁹ As Justices Black and Douglas observed in 1949, 'there was no history, logic, or reason given to support that view. Nor was the result so obvious that exposition was unnecessary.'⁵⁰ But though this dissenting judgment of Black and Douglas JJ deploys powerful reasons against that 'result', developing the reasons deployed many years earlier in another dissent by Black J,⁵¹ neither the Court itself nor any Justice supporting the result has ever added even a single sentence of justification to the ukase of 1886. Perhaps we should not be surprised, though we are entitled to be dismayed, that no Justice has ever tried to reconcile the 'conclusion' in *Roe* with the 'result' in *Santa Clara*.

⁴⁴ 286 NE 2d 887 at 889, *per* Breitel J for the Court (5: 2).

⁴⁵ 286 NE 2d at 890.

⁴⁶ 410 US 113 at 157, *per* Blackmun J (7: 2). At 162 Blackmun J quotes verbatim, though without acknowledgement, a whole sentence from *Byrn* at 888.

⁴⁷ See Finniss, ' "Shameless Acts" in Colorado: Abuse of Scholarship in Constitutional Cases', *Academic Questions*, Fall 1994. 10-41 at 1-18, 36-7.

⁴⁸ 410 US at 157-8.

⁴⁹ 118 US 394 at 396.

⁵⁰ *Wheeling Steel Corporation v. Glander* 337 US 563 at 577.

⁵¹ *Connecticut General Legal Insurance Co. v. Johnson*, 303 US 77 (1938) at 85-90.

As Black and Douglas JJ remark, after demonstrating the arbitrariness of the Court's checkerboard rulings about the application to corporations of the 14th Amendment's several uses of 'person' and 'citizen', and the good sense of a finding that the Amendment's protection is of human beings, natural not artificial persons: '[h]istory has gone the other way'. To which they add, however, that it is not too late for the Court to overrule its error on 'a question of vital concern to the people of the nation'.⁵² It is increasingly accepted, by legislative and judicial authorities in most US states,⁵³ that the unborn child is entitled to protection and remedies in tort even if born dead, and likewise to the protection of the criminal law. These developments, though restricted rather arbitrarily by the constitutional maternal rights declared by the Supreme Court in *Roe*, mark a retreat from simple refusal to take account of the realities of personal existence before birth.

V ON NATURAL AND ARTIFICIAL PERSONS IN LAW

In a realistic moral, political, or legal analysis of human associations and their actions, 'personality' is a distracting metaphor. For it is a metaphor always tugged between its two historic sources. On the one hand, there is *persona* as mask; to this corresponds the law's carefree attribution of legal personality to *anything* that figures as subject (topic) of legal relations, particularly of property and/or litigious relationships: idols, funds, parcels of property on the quayside, the Crown, and so forth. On the other hand, there is *persona* as individual substance, of a rational nature;⁵⁴ to this corresponds nothing (save metaphorically) in the many orderings of human interaction and association which we call groups⁵⁵ - nothing except the people who are members. Still, there is a link between these two sources and poles of meaning of 'person'. For the actor's mask is or creates an assumed identity. But a being of a rational nature can, with sufficient health and maturity, make choices (because understanding different kinds of benefit and different ways to one and the same benefit), and by making choices one shapes one's character/identity - one comes to have, and in that sense assumes, a personal identity (one's character). A day-old baby has - *radically*, albeit not yet in actually usable form - this capacity to choose (with such self-determining, intransitive effects). A mouse, whether day-old or mature, lacks that radical capacity, though even as a day old embryo it has the radical capacity, unlike an acorn or an oak seedling, to run.

Hart recommended that we 'put aside the question "What is a corporation?", and ask instead "Under what types of conditions does the law ascribe liabilities to corporations?"', since this would, he thought, clarify 'the precise issues at stake' in 'extension to corporate bodies of rules worked out for individuals'.⁵⁶ The advice to look for the truth conditions of propositions, to understand analogies, and to seek for the principle upon which rules are extended from one context to another was sound. But it was

⁵² 337 US at 580, 581.

⁵³ See e.g. Clark D. Forsythe, 'Human Cloning and the Constitution' (1998) 32 *Valparaiso University Law Review* 469 at 497-502.

⁵⁴ '*Persona est rationalis naturae individua substantia*': Boethius, *De Duabus Naturis* c. 3 (Migne, *Patrologia Latina* 64, 1343); see Aquinas, *Summa Theologiae* I q. 29 a. 1.

⁵⁵ Here and elsewhere in this essay I use 'group' in the second, more specified sense of that highly ambiguous term, whose two basic poles of meaning are (i) class or category, regardless of cohesiveness, cooperation or interaction, e.g. all women in Pakistan (held to be a 'particular social group' for the purposes of the Art. 1A(2) of the Convention relating to the Status of Refugees (1951): *R. v. Immigration Appeal Tribunal, ex parte Shah* [1999] 2 WLR 1015), and (ii) a number of persons who co-ordinate their activity over an appreciable span of time by interactions with a view to a shared objective (see Tony Honoré, 'What is a Group' in his *Making Law Bind: Essays Legal and Philosophical* (Oxford University Press, Oxford, 1987), Finnis *Natural Law and Natural Rights*, n. 6 above, 150-3).

⁵⁶ 'Definition and Theory in Jurisprudence' (1953) in Hart, *Essays in Jurisprudence and Philosophy* (Clarendon Press, Oxford, 1983) at 43, also 45, 47.

mistaken to assume that such techniques of analysis would dissolve the underlying question whether corporations are entities in the same plane of reality as the human persons whom Hart referred to by his term 'individuals'. The suppression of that question, a suppression implicitly defended if not proposed by Hart, opens the way to the agnosticism, arbitrariness, and consequent injustice of cases such as *Byrn v. New York City Health and Hospitals*.

Without doubting or challenging the legal rules which distinguish a corporation's rights and liabilities from those of its members, one can make more progress in understanding the relevant realities and interests by first going beyond and behind Hart, to Hohfeld's masterly demonstration that 'transacting business under the forms, methods, and procedure pertaining to so-called corporations is simply another mode by which *individuals* or *natural persons* can enjoy their property and engage in business'.⁵⁷ One does not well understand corporate⁵⁸ liability (or rights, duties, etc.) until one understands how the liabilities etc. of human persons, such as shareholders, directors, employees and other agents, are implicated and affected. The same will be true of the rights and liabilities of other juristic entities such as idols, parcels of goods, etc.; these rights and liabilities are not well understood until one can point, directly or through corporate intermediaries, to individuals with control over ascertainable funds, and so forth.

Hohfeld's more famous analysis of jural relations, though making possible (with a few further specifications) a complete analysis of such relations between persons at any given moment, still leaves something to be explained in terms of the continuity and rationale of rights.⁵⁹ Similarly, his demonstration that a corporation's rights etc., as they exist at any moment, are analysable without remainder into individuals' rights etc. should not be understood as showing that a group of persons has no reality. A human group or community has all the reality of group action, as well as of the group's members' - human persons' - acts and dispositions to act, dispositions which are manifested in the members' readiness to participate in, and emotional responsiveness to, the group's action, for the sake of the good(s) which give(s) point to that action. That is to say, the reality of a group is the reality of an order of human, truly personal acts, an order brought into being and maintained by the choices (and dispositions to choose, and responses to choices) of *persons*. A group's act is defined by its 'public' proposal - i.e. by the form in which it is proposed to members of the group, for them to participate in or not. Social acts, though irreducible to the acts of people in the acting group, are constituted exclusively by those acts-acts of individual human persons.⁶⁰

VI ON PERSONS AS PRIMARY BEARERS OF MEANING AND OBJECTS OF INTERPRETATION

⁵⁷ Wesley Newcombe Hohfeld, 'Nature of Stockholders' Individual Liability for Corporation Debts' (1909) 9 *Columbia Law Review* 285 at 288, reprinted in Hohfeld, *Fundamental Legal Conceptions as Applied in Judicial Reasoning and other Legal Essays* (ed. W.W. Cook, Yale UP, Princeton, NJ, 1923) 194 at 197. Hart's partly critical remarks about Hohfeld's account of corporations ('Definition and Theory in Jurisprudence', n. 56 above, at 42 n. 22) seem beside the point.

⁵⁸ Note that, as Hohfeld incidentally makes clear, the distinction between bodies formally incorporated and unincorporated associations is in many respects much less clear-cut than is often supposed. There is evidence of this in the provisions of the Interpretation Act 1978, s. 5 and Sched. (adapted from the Interpretation Act 1889 s. 19): '[i]n any Act, unless the contrary intention appears . . . "Person" includes a body of persons corporate or unincorporate.' Notice also that this definition would be mired in an infinite regress but for the fact that the term 'person' also 'includes' individual persons such as those who are the paradigmatic members of bodies, corporate or unincorporated, of persons.

⁵⁹ See e.g. Finnis, *Natural Law and Natural Rights*, n. 6 above, 201-2.

⁶⁰ See Finnis, 'Persons and their Associations', *Proceedings of the Aristotelean Society*, Supplementary Vol. 43 (1989) 267-74.

Interpretation is primarily and focally a matter of trying to understand the person or persons whose utterance or other significant performance is under consideration. Decided entirely by Oxford members of the House of Lords, *Mannai Investment Co. Ltd. v. Eagle Star Life Investment Co.*⁶¹ might be deemed an Oxford essay in jurisprudence. Does '12th' mean 13th? At large, it clearly does not. But someone who uses the word '12th' may in fact mean 13th, and a proper interpretation of that person's use of the word, in the relevant and properly admissible circumstances of the utterance, may determine that that, being what the person meant to convey and would reasonably have been understood to mean to convey, was the utterance's real meaning, properly construed. As Lord Hoffmann says, 'It is a matter of constant experience that people can convey their meaning unambiguously although they have used the wrong words.' It is true, he adds, that:

The law is not concerned with the speaker's subjective intentions. But the notion that the law's concern is therefore with the 'meaning of his words' conceals an important ambiguity. The ambiguity lies in the failure to distinguish between the meaning of words and the question of what would be understood as the *meaning of a person* who uses words. . . .

When . . . lawyers say that they are concerned, not with subjective meaning but with the meaning of the language which the speaker has used, what they mean is that they are concerned with what he would objectively have been understood to mean. This involves examining not only the words and the grammar but the background as well. So, for example, in *Doe d. Cox v. Roe* (1802) 4 Esp 185, 170 ER 685 the landlord of a public house in Limehouse gave notice to quit 'the premises which you hold of me . . . commonly called . . . the Waterman's Arms'. The evidence showed that the tenant held no premises called the Waterman's Arms; indeed, there were no such premises in the parish of Limehouse. But the tenant did hold premises of the landlord called the Bricklayer's Arms. By reference to the background, the notice was construed as referring to the Bricklayer's Arms. The meaning was objectively clear to a reasonable recipient, even though the landlord had used the wrong name. . . . There was no need to resort to subjective meaning.⁶²

In an academic essay in jurisprudence, there is no need to employ the rather misleading lawyers' jargon of 'subjective' and 'objective'. But Lord Hoffmann's meaning emerges clearly despite that lawyerly opacity. As he put it later: 'words do not in themselves refer to anything; it is people who *use* words to refer to things'.⁶³ And again: '[i]n this area [commercial contracts] we no longer confuse the meaning of words with the question of what meaning the use of the words was intended to convey'.⁶⁴ The decision of the House was that, similarly, a notice to terminate a lease 'on 12 January 1995' unambiguously conveyed, in all the circumstances of the giving of the notice (including such circumstances as the terms of the lease itself) - as they would have been apparent to and considered relevant by a reasonable bystander at the time - the intention to terminate the lease on 13 January 1995. For that was what a reasonable person aware of the relevant background would have understood to have been the intention and therefore the meaning of the person giving the notice. Since the law is for the sake of persons, and its rules are fundamentally relationships between persons, it is a mistake to try to understand legal interpretation on the model of the creation and representation, recital, or rendering of works of art.⁶⁵ So, if jurists seeking to understand the

⁶¹ [1997] AC 749, [1997] 3 All ER 352. The Lords divided 3:2, with the two University College judges in the majority (supported by a Scot from Corpus Christi College).

⁶² Ar 376. Lord Goff, dissenting, accepts that *Doe d Cox v. Roe* was rightly decided - i.e. that the court in that case 'properly construed' the notice - and he does not succeed in explaining satisfyingly why the majority's construction of the notice in *Mannai* itself is not equally 'proper'.

⁶³ At 378 (his emphasis).

⁶⁴ At 380. On interpreting commercial contracts, see also *Investors' Compensation Scheme Ltd v. West Bromwich Building Society* [1998] 1 WLR 896, [1998] 1 All ER 98 at 114e-116f, per Lord Hoffmann.

⁶⁵ See Finniss, 'Natural Law and Legal Reasoning' in Robert P. George (ed.), *Natural Law Theory*

place of interpretation in law were obliged to choose between 'conversational' and 'artistic' models, they would be well advised to choose the conversational. But the alternatives are not exhaustive.

Like participants in conversation, legal interpreters seek to understand the author who, in making some statement, has exercised a private power or public authority. But legal interpreters are entitled and required to treat that statement, especially when made in the exercise of the public powers of legislation or adjudication, as taking its place in the legal system as a whole - in a complex of persons and their institutions, as well as of principles and rules, including techniques and conventions of drafting and interpreting, all presumptively oriented towards justice and common good.

Dworkin has proposed that the political, legally organized community be personified, so that such cohering with a larger whole, like integrity of personal character, be taken as axiomatically required.⁶⁶ The proposal shows vividly enough that his general assimilation of legal with artistic rather than conversational interpretation is a choice of the less fitting of the two models he puts forward as the alternatives. True, in legal interpretation as in conversation the intent of the author really matters, as the very concept of authority to make or declare law entails.⁶⁷ But a properly juridical interpretation will not be as ready to consider authoritative an unjust as it will a just meaning. Thus it differs from sensible conversationalists, who like good historians are quick to detect, and not too ready to overlook, their interlocutors' perhaps vicious purposes and deficiencies of personal character.

VII ON THE NATURE OF PERSONS AND THE GROUND OF THEIR RADICAL EQUALITY

What, then, are the 'natural facts' which should inform juristic thought about the persons whom law exists to serve? What is this human nature, which in its bodiliness is known to lawyers as injured in crimes and torts, and sustained by the resources always somehow disposed of in property rights (howsoever artificial); and which in its irreducible intellectuality is known to us as the maker of signs, signatures, and meanings, and subject of intentions? Here jurisprudential reflection can helpfully go back to its origins, perhaps in Plato's reflections on the trial and execution of Socrates. In the act of (say) speaking to my partner in discourse - perhaps, the court I am addressing as advocate, or the client I am advising as jurisconsult - I understand my utterance as the carrying out of a choice *which I made*, and in the same act I am aware of my audible uttering, see the hearers register their comprehension, feel (say) confidence or anxiety, remember a past misunderstanding, and hope my statement will make my point. This experience of the *unity (including continuity)* of my being - as a feeling, willing, observing, remembering, understanding, physically active and effective mover or cause of physical effects and equally an undergoer and recipient of such effects - is a datum which philosophical exploration of human and other natural realities can adequately account for only with great difficulty and many a pitfall. Still, prior to all accounts of it, this intelligible presence of my many - faceted acting self to myself is a datum of *understanding*, one and the same I - this human being - who am understanding and choosing and carrying out my choice and sensing, etc., is a reality I already truly understand, albeit not yet fully (explanatorily, with elaboration). (Indeed, it is only given this primary understanding of one's understanding, willing, and so forth, that one can and typically does *value* such understanding, freedom, voluntariness, unity of being, and so forth.)

(Oxford University Press, Oxford, 1992) 134-57 at 139-43.

⁶⁶ *Law's Empire*, n. 8 above, 167-75; see also e.g. 225: '[t]he adjudicative principle of integrity instructs judges to identify legal rights and duties, so far as possible, on the assumption that they were created by a single author - the community personified - expressing a coherent conception of justice and fairness.'

⁶⁷ See Joseph Raz, 'Intention in Interpretation' in Robert P. George (ed.), *The Autonomy of Law* (Oxford University Press, Oxford, 1996) 249-86 at 268.

So, as Aristotle and (plainly) Aquinas argue more or less explicitly,⁶⁸ any account proposing to explain these realities must be consistent with the complex data it seeks to explain, data which include the proposer's performance, outward and inward, in proposing it. It will not do to propose (as many today propose) an account of personhood such that spirit-person and mere living body are other and other, for 'spirit-person' and 'mere living body' are philosophical constructs neither of which refers to the unified self, the person who had set out to explain his or her own reality. Both of these constructs purport to refer to realities which are other than the unified self yet somehow, inexplicably, related to it.⁶⁹

The only account which meets the condition of consistency with the explainer's own reality and performances will be an account along the lines argued for by Aristotle and Aquinas: the very *form* and lifelong *act(uality)* by which the matter of my bodily make-up is constituted the unified and active subject (me myself) is a factor, a reality, which Aristotle (after Plato) calls *psyche* and Aquinas calls soul (*anima*). In the human animal - the very same animal whose interests in every individual case are to be taken equally into account, in Plato's as in present-day ethics aspiring to be 'postmetaphysical' - from the very outset of his or her existence as human, it is this one essentially unchanging factor, unique to each individual, which explains (1) the unity and complexity of the individual's activities, (2) the dynamic unity in complexity - in one dimension, the programme - of the individual's growth as embryo, foetus, neonate, infant . . . and adult, (3) the relatively mature individual's understanding of universal (e.g. generic) immaterial objects of thought (e.g. classes of entities, or truth and falsity of propositions, or soundness/unsoundness in reasoning), and (4) this unique individual's generic unity with every other member of the species. In members of our species the one factor unifying and activating the living reality of each individual is at once vegetative, animal (sentient and self-locomotive), and intellectual (understanding, self-understanding, and, even in thinking, self-determining by judging and choosing). Of course, the manifold activations of these bodily and rational powers are variously dependent upon the physical maturity and health of the individual. But the essence and powers of the soul seem to be given to each individual complete (as wholly undeveloped, *radical* capacities) at the outset of his or her existence as such. And this is the root of the dignity we all have as human beings. Without it claims of equality of right would be untenable in face of the many ways in which people are unequal.

This metaphysics of the activity of discourse, advocacy, adjudication, lecturing, and writing⁷⁰ enables jurisprudence to stabilize its most fundamental concepts: the good which, because it is the good of members of a group who all are persons, can and should be a *common* good, and the rights which justice essentially consists in respecting and promoting unyieldingly.

⁶⁸ See Aquinas, *De Unitate Intellectus* III.3 [79]; Finnis, *Aquinas: Moral, Political, and Legal Theory* (Oxford University Press, Oxford, 1998), 177-9.

⁶⁹ See Finnis, 'Bland: Crossing the Rubicon?' (1993) 109 *Law Quarterly Review* 329-37 at 333.

⁷⁰ On personal unity and identity as actuated in the activity of writing, see Finnis, 'Persons and their Associations', n. 58 above, at 267-8.

Introduction to *Islam and Human Rights*

Muhammad Zufralla Khan

Life is dynamic, and so are man and human society. One characteristic of dynamism is that it generates friction, and in terms of social values that means difference and very often dispute. Difference, or, let us say, the right to differ, lies at the root of all knowledge, inquiry, investigation, research and progress. While, therefore, we must strive to safeguard the right to differ, to question, to dissent and on occasion even to protest, we must at the same time strive to secure that our differences, in every sphere - religious, philosophical, scientific, social, economic, political or whatever, should act and react beneficently and not destructively. When they threaten to become acute they must be regulated, and must be sought to be resolved or adjusted through the adoption of agreed peaceful procedures. This means, broadly, that we must all submit voluntarily or, if needed, reluctantly and even under constraint, to what has come to be described as the rule of law.

The Declaration of Human Rights does not, in the accepted juristic sense of the term, constitute a "law". It stands, nevertheless, as a shining milestone along the long, and often difficult and weary, path trodden by Man down the corridors of History, through centuries of suffering and tribulation, towards the goal of freedom, justice and equality. Man's struggle for freedom, justice and equality has been waged in all ages and in many fields and theatres, with varying fortunes. Each of these battles, and the ground won in each, have, in turn, forwarded the cause of Man and have contributed towards the formulation and adoption of the Declaration, which is entitled to rank with the great historical documents and Charters directed towards the same objective.

Some of the written Constitutions, more particularly those of certain newly independent States, have incorporated the substance of several of the articles of the Declaration as substantive provisions, and others have set forth some of them as Directives of State policy. In the former case the relevant provisions have become justiciable and are thus enforceable through judicial process. This is encouraging, so far as it goes; but it is only a beginning. Much remains to be achieved in that regard, as well as in other respects.

At this stage the main effort must continue to be directed towards obtaining wider recognition of the need to insure that human rights shall carry with them sanctions which would serve to make these rights enforceable through judicial process. For this purpose, the principal instrument which should be availed of is the national legislature of each State, which should, through appropriate constitutional and legislative processes, invest human rights with legal sanctions enforceable through the national judicial system. This process would, however, prove effective only in the case of States in which resort to judicial process is not unduly restricted and the process is guaranteed to take its due course without let or hindrance. In other words, a free and independent judiciary is a *sine qua non* for the effective safeguarding of human rights and for guaranteeing freedom, justice and equality.

Legislative action at the national level, supported by a free and independent judiciary, would go a very long way towards securing the desired objective, but would need to be supplemented by provision for recourse, by way of appeal or review, and in suitable cases even by original motion, to regional tribunals and ultimately to an International Tribunal. Recourse to a regional or to the International Tribunal at the initial stage should, however, be available only in cases where no remedy has been provided for at the national level. Exhaustion of remedies available at the national level must be a condition precedent without fulfilment of which recourse should not be open to a regional or International Tribunal. In the absence of such a provision, the harmonious working of a system of national, regional and International Tribunals might prove both cumbersome and difficult.

Regarding legislative provisions embodying human rights, it must be remembered that the Declaration of Human Rights is not a draft Bill and cannot serve that purpose. While some of the articles of the Declaration embody clear-cut, concrete provisions and could, with slight verbal alterations, be incorporated in a draft Bill, the rest only give expression to the ideal or objective to be achieved through administrative action, possibly in stages, supported and strengthened by legislative authority. The pace and tempo in each region and country would be dependent upon many and varying factors - social, cultural, economic - and uniformity could not reasonably be insisted upon. Nor would it be wise to call for literal compliance with every article of the Declaration. Some of these, pertaining to the social and cultural fields, may, in certain systems and disciplines, be acceptable in the spirit, while calling for some modification, limitation or explanation of their scope, meaning and operation before they could be cast in the legislative mould. So long as the purpose underlying them could be carried into effect, adaptation to particular social and cultural systems and patterns would be beneficent rather than harmful. This is the Age of Man. Man is beginning to be conscious of his own position in the universe and demands that his personality and dignity shall be accorded due recognition and respect. He is beginning to take note of that which his fellow beings, society and the State owe to him and of that which, in turn, he owes to them. This process needs to be stimulated and accelerated. This consciousness needs to be aroused where it may still be lacking and to be sharpened where it has been awakened. In this context emphasis must be laid on man's obligations and duties towards his fellow beings as the principal means of securing his own rights, freedom and privileges, for they are the obverse and reverse of the same coin. To the degree to which each of us fulfils and discharges his own duties and obligations towards his fellow beings, he promotes the climate in which human dignity, freedom and equality may flourish and achieve their consummation.

How is it that in the last half of the twentieth century, after having passed through the shattering and devastating experience of two world wars and in the shadow of a nuclear holocaust, despite all the effort that has so far been put forth to the contrary, man continues to be the victim of discrimination, intolerance and cruelty at the hands of his fellow man? One would have thought that man's daily increasing knowledge of the working of the laws of nature and his growing mastery over the forces of nature, which have opened for everyone of us the prospect of a richer, fuller and happier life, would have brought in their wake an era in which man could dispense with the weapons of greed, selfishness, exploitation and dominance which had so far been regarded, albeit utterly erroneously, as contributing towards the welfare and prosperity of those who were, from time to time, in a position to employ them. For, indeed, the truth is daily becoming more manifest, as experience in every field continues to furnish fresh confirmation, that the prosperity of all is promoted through mutual sharing and co-operation rather than through the exploitation and domination of some by others. It must be our constant endeavour to bring this home to all in every corner of the globe.

While, therefore, it is not only necessary but essential that we should intensify and multiply our efforts towards the safeguarding of human rights through executive, administrative, legislative and judicial processes, we must all, individually and collectively, strive continuously to deepen our consciousness of the duties we owe to each other at the moral and spiritual levels.

For the Muslims, and indeed for all mankind, Islam seeks to stimulate and deepen that consciousness. It emphasizes our duties and obligations, so that each of us, by due discharge of them, should help to safeguard freedom, justice and equality for all and should promote and foster human welfare and prosperity in all spheres - social, economic, moral and spiritual. It seeks to establish a pattern of society which, in all the changing and developing circumstances of a dynamic world, would maintain its character of beneficence in all spheres of life - individual, domestic, national and international. For this purpose it furnishes us with a framework of beliefs, duties, obligations, exhortations and sanctions. It also provides us with guidance at all levels and in all fields.

The Prophet's functions are described in the Quran as, the creation and strengthening of faith through drawing attention to Divine Signs, the moral and physical uplift of the people, teaching them the Law and furnishing them with guidance and expounding the philosophy underlying the Law and the guidance (62:3).

It should be noted that the Quran prescribes only those details which are essential. It thus leaves considerable room for development and safeguards against restrictive rigidity. Indeed, it warns against seeking the regulation of everything by express Divine command, as that might make the framework rigid and inelastic and therefore burdensome. "O ye who believe, do not keep asking about things which, if they were expounded to you, would become troublesome for you . . . Allah has left them out. Allah is Most Forgiving, Forbearing. A people before you made such demands, and when they received the directions they repudiated them" (5:102-3).

That which Allah has "left out" is meant to be devised, in accord with the prescribed standards and values and in consonance with the framework, through mutual consultation (3:100; 42:39) to meet the need when it should arise, always bearing in mind that the overall standard is that *ma'roof*, equity, is to be fostered and *munkar*, iniquity, is to be eschewed.

When the Prophet appointed Mu'az as Qazi of Yemen, he asked him what rule he would follow when he had to make a decision. Mu'az said he would look for the rule in the Book of Allah. "And if you do not find the answer in the Book?" queried the Prophet. "I shall seek for it in the example of the Prophet." "And if you still lack an answer?" "I shall exercise my own judgment." "That is the right way," he was assured by the Prophet.

The whole vast, elaborate system of Muslim jurisprudence has been developed along those lines. In fact Islam stimulated and released so effervescent and variegated an intellectual ferment that, to confine oneself to the field of jurisprudence alone, within a very brief period several Schools of Jurisprudence flourished within the rapidly widening expanse of the Islamic State. Four of them, the Hanafi, Maliki, Shafei and Hanbali (all of the Sunni persuasion) still maintain their pre-eminence and hold their sway in regions where Islamic Law is administered.

The great Imams of Jurisprudence, Sunni and Shii alike, and also those of other persuasions, together with their eminent disciples and a host of those who followed after them have, through their unremitting labours sustained through centuries, not only enriched and embellished Muslim Jurisprudence, but made an invaluable contribution to the development of the Science of Law and to what that eminent international jurist, C. Wilfred Jenks, has called the Common Law of Mankind. They have thus laid the juristic world under a heavy debt of gratitude.

Introduction to the 1948 UNESCO Philosophers' Report

Jacques Maritain

Of the tasks assigned to the United Nations Organization, one of those which could and should most nearly affect the conscience of the peoples is the drawing, up of an *International Declaration of Human Rights*. The task was committed to the Economic and Social Council of the United Nations. Unesco's part was to consult philosophers and assemble their replies. This volume is a collection of the most significant texts thus gathered in the course of Unesco's enquiry into the philosophic bases of Human Rights.

This book then is devoted to the rational interpretation and justification of those rights of the individual which society must respect and which it is desirable for our age to strive to enumerate more fully. Many schools of thought are represented, each of which brings to the whole its particular view and justification of individual rights, leaning in various degrees towards the classical or the revolutionary interpretation: it is not the first time that expert witnesses have quarrelled among themselves. The paradox is that such rational justifications are indispensable yet powerless to bring about agreement between minds. They are indispensable because each one of us believes instinctively in the truth, and will only assent to what he himself has recognized as true and based on reason. They are powerless to bring about a harmony of minds because they are fundamentally different, even antagonistic: and why should this surprise us? The questions they raise are difficult and the philosophical traditions to which they are related have long been divergent.

It is related that at one of the meetings of a Unesco National Commission where Human Rights were being discussed, someone expressed astonishment that certain champions of violently opposed ideologies had agreed on a list of those rights. "Yes", they said, "we agree about the rights *but on condition that no one asks us why*." That "why" is where the argument begins.

The question of Human Rights offers us an outstanding example of the situation I attempted to outline in an address at the Second General Conference of Unesco, from which I venture to reproduce certain passages.

"How" I asked "can we imagine an agreement of minds between men who are gathered together precisely in order to accomplish a common intellectual task, men who come from the four corners of the globe and who not only belong to different cultures and civilizations, but are of antagonistic spiritual associations and schools of thought . . .? Because, as I said at the beginning of my speech, the goal of Unesco is a practical goal, agreement between minds can be reached spontaneously, not on the basis of common speculative ideas, but on common practical ideas, not on the affirmation of one and the same conception of the world, of man and of knowledge, but upon the affirmation of a single body of beliefs for guidance in action. No doubt, this is little enough, but it is the last resort to intellectual agreement. It is nevertheless, enough to enable a great task to be undertaken and it would do much to crystallize this body of common practical convictions."

"I should like to note here that the word 'ideology' and the word 'principles' can be interpreted in very different senses. I have shown that the present state of division among minds does not permit of agreement on a common *speculative ideology* nor on common explicit principles. But, on the other hand, when we are concerned with a basic *practical* ideology of basic principles of *action* implicitly recognized today, in a live, even if formulated state, by the consciousness of free peoples, we find that they constitute *grosso modo* a sort of common denominator, a sort of unwritten common law, at the point where in practice the most widely separated theoretical ideologies and mental traditions converge. To understand

this, it is only necessary to make the appropriate distinction between the rational justifications involved in the spiritual dynamism of a philosophic doctrine or religious faith, and the practical conclusions which, although justified in different ways by different persons, are principles of action with a common ground of similarity for everyone. I am quite certain that my way of justifying belief the rights of man and the ideal of liberty, equality and fraternity is the only way with a firm foundation in truth. This does not prevent me from being in agreement on these practical convictions with people who are certain that their way of justifying them, entirely different from mine or opposed to mine, in its theoretical dynamism, is equally the only way founded upon truth. If both believed in the democratic charter, a Christian and a rationalist would still give mutually incompatible justifications for their belief, if their hearts and minds and blood were involved, and they would fight each other for them. And God forbid that I should say it does not matter to know which of the two is right! It matters essentially. The fact remains that, on the practical expression of this charter, they are in agreement and can formulate together common principles of action."

Where it is a question of rational interpretation and justifications of speculation or theory, the problem of Human Rights involves the whole structure of moral and metaphysical (or anti-metaphysical) convictions held by each one of us. So long as minds are not united in faith or philosophy, there will be mutual conflicts between interpretations and justifications.

In the field of practical conclusions, on the other hand, agreement on a joint declaration is possible, given an approach pragmatic rather than theoretical and co-operation in the comparison, recasting and fixing of formulae, to make them acceptable to both parties as points of convergence in practice, however, opposed the theoretic viewpoint. There is nothing to prevent the achievement, in this way, of a new and wider declaration of Human Rights marking a notable stage in the unification of the world, and wherein more especially the concept exclusive to classical individualism of man as a being inherently entitled to rights and liberties for the working out of his personal destiny, and the concept exclusive to Marxism of man as a being with rights and liberties deriving from his role in the historical evolution of the community of which he is a part, would supplement and integrate each other - I mean purely pragmatically and only for the promulgation of a number of principles for action and rules of behaviour. It is not reasonably possible to hope for more than this convergence in practice in the enumeration or articles jointly agreed. The reconciling of theories and a philosophic synthesis in the true sense are only conceivable after an immense amount of investigation and elucidation of fundamentals, requiring a high degree of insight, a systematization and authoritative correction of a number of errors and confusions of thought. For that very reason, and even if it succeeded in influencing culture to any important degree, this synthesis would remain one doctrine among many, accepted by some and rejected by others, with no pretension in fact to universal dominion over the minds of men.

The very diversity of the interpretations and justifications put forth in the essays in this book is in itself an important object lesson for the reader, wherein he will find, I trust, confirmation of the considerations set out above. Is there anything surprising in systems antagonistic in theory converging in their practical conclusions? It is the usual picture which the history of moral philosophy presents to us. The phenomenon proves simply that systems of moral philosophy are the products of reflection by the intellect on ethical concepts which precede and govern them, and which of themselves display, as it were, a highly complex geology of the mind where the natural operation of spontaneous reason, pre-scientific and pre-philosophical is at every stage conditioned by the acquisitions, the constraints, the structure and the evolution of the social group. Thus, if I may be allowed the metaphor, there is a kind of plant-like formation and growth of moral knowledge and moral feeling, in itself independent of philosophical systems and the rational justifications they propound, even though there is a secondary interaction between them and itself. Is it surprising that, while all these systems quarrel over the why and wherefore, yet in their practical conclusions they prescribe rules of behaviour which are in the main and for all practical

purposes identical for a given age and culture? What is chiefly important for the moral progress of humanity is the apprehension by experience which occurs apart from systems and on a different logical basis - assisted by such systems when they awake the conscience to knowledge of itself, hampered by them when they dim the apperceptions of spontaneous reason, or when they cast suspicion on a genuine acquisition of moral experience by linking it with some error of theory or false philosophy.

Finally, it is the speculative and interpretative approach, as such, in the present book, will afford the reader the chief food for thought. For the texts here collected bring us the testimony of men specially well qualified to give an authoritative exposition of the main currents, of contemporary thought. It is profitable to know those currents, however severely we may censure those which that are not our own and however legitimate that censure may sometimes be. Whatever school of thought we belong to, the comparison of our own ideas with those of so many distinguished minds will perfect and broaden our views on the nature and basis of Human Rights, on what enumeration of them should be attempted at our present stage in historical evolution, and on the scope - indeed on the gaps also - of the new declaration being prepared in the councils of the United Nations.

From the point of view of philosophic doctrine it may be said, without over-simplification, that, as regards, the question of Human Rights, men are today divided - as the readers of this collection will easily perceive - into two antagonistic groups: those who to a greater or lesser extent explicitly accept, and those who to a greater or lesser extent explicitly reject "Natural Law" as the basis of those rights.

In the eyes of the first the requirements of his being endow man with certain fundamental and inalienable rights antecedent in nature, and superior to society, and are the source whence social life itself, with duties and rights which that implies, originates and develops. For the second school man's rights are relative to the historical development of society, and are themselves constantly variable and in a state of flux; they are a product of society itself as it advances with the forward march of history.

Such an ideological contrast is irreducible and no theoretical reconciliation is possible; it could however be lessened to some extent, insofar as it was possible for the supporters of "Natural Law" to stress that, although certain fundamental rights meet a prime necessity of that law while others meet only a secondary necessity or are merely desirable, nevertheless our knowledge of both is in all circumstances subject to slow and irregular growth, so that those rights only stand forth as acknowledged rules of conduct as moral consciousness progresses and societies evolve; and insofar as it was possible for the opponents of "Natural Law" to stress that, though many rights are seen to be conditioned on the evolution of society, other more primitive rights stand out as a condition of society's very existence. However, it is by no means certain that the "fundamental rights" of the first group would always coincide with the "more primitive rights" of the second . . .

If thereafter we adopt no practical view point and concern ourselves no longer with seeking the basis and philosophic significance of Human Rights but only their statement and enumeration, we have before us an entirely different picture, where no theoretical simplification is any more in question: then, as I have explained above, not only is agreement possible between the members of opposing philosophic schools, but it must be said that the operative factors in any historical introduction to a joint assertion of Human Rights are less the schools of philosophy themselves than *currents of thought*, which are doubtless linked more or less closely to those schools, but where the principal part has been played by the lessons of experience and history and by a kind of practical apprehension, bringing with them a dynamically greater force, and simultaneously a wider liberty relative to the principles and logic of abstract systems. In consequence, it cannot be too strongly emphasized that admission of a particular category of rights is not the exclusive possession of one school of thought: it is no more necessary to belong to the school of Rousseau to recognize the rights of the individual than it is to be a Marxist to recognize the "new rights" as they are called, economic and social rights. The gains of the collective intelligence under the influence

of its several cross-currents go far beyond the disputations of the schools.

It is legitimate to suspect that the antagonism which many contemporary authors see fit to postulate between "old" and "new" Human Rights is partly artificial and derived either from the liking of theorists for ideological conflicts or more, perhaps, from the absolutist concept of Human Rights held by the philosophy - or better the rhetoric - of the 18th Century, whose after effects still in some measure give rise to misunderstandings today, and taint certain sacred formulae of the vocabulary of Human Rights. If each of these rights is in itself absolute and not susceptible of any limitation, in the same way as a divine attribute, clearly conflict between them is insoluble. But in practice everyone sees that these rights, being human, are subject, like every other human thing, to modification and limitation. Even where rights are "inalienable", a distinction must be made between possession and exercise, the latter being subject to the modifications and limitations dictated in each instance by justice. If a criminal can justly be condemned to lose his life, it is because he has, by his crime, deprived himself, not of his right to existence, but rather of the possibility of demanding that right with justice: morally he has cut himself off from membership of the human community, as far as concerns the use of that fundamental and "inalienable" right which the penalty imposed prevents his exercising. Again the imparting by teaching and upbringing of the heritage of human culture is a fundamental right: in practice it is subject to the physical capacity of a given society, and justice may forbid its enjoyment by all being demanded *hic et nunc*, if such enjoyment is only conceivable through the dissolution of the social body, as in the case of the slave-owning society of ancient Rome, or the feudal society of the middle ages; the claim nevertheless remains a legitimate goal to be achieved in time. It then remains to endeavour to change the social order in question. Incidentally, this instance shows us that at the root of the hidden urge which impels us ever to the transformation of society, there lies the fact that man *possesses* "inalienable" rights and that nevertheless he is deprived of the possibility of justly claiming to *exercise* certain of them by such inhumanities as subsist in the social structure of each age.

It is only normal that the various acknowledged rights of the individual should be mutually limitative, and in particular that economic and social rights, the rights of man as a social animal, cannot take their place in human history without some restrictions upon the freedom and rights of man as an individual. Where the difficulties and arguments begin is in the determination of the scale of values governing the exercise and concrete integration of these various rights. Here we are no longer dealing with the mere enumeration of Human Rights, but with the principle of dynamic unification whereby there are brought into play, with the tone scale, with the specific key in which different kinds of music are played on the same keyboard, music which in the event is in tune with, or harmful to, human dignity.

Conceivably the advocates of the liberal-individualist, of the Communist and of the co-operative type of society might draw up similar, even identical, lists of Human Rights. But their exercise of these rights will differ. All depends on the ultimate value whereon those rights depend and in terms of which they are integrated by mutual limitations. It is, in term of the scale of values which we thus acknowledge that we establish the means whereby, in our eyes, Human Rights, economic and social, as well as individual, shall impinge on life; it is from these different scales of values that spring mutual accusations of misunderstanding certain essential rights of the human being levelled by those for whom the mark of human dignity lies firstly and chiefly in the power to appropriate individually the gifts of nature so that each may be in a position to do freely what pleases him; by those who see it in the power to place those gifts under the collective control of the social body and thus deliver man from the treadmill of labour and gain control of history; or by those who see it in the power of bringing the gifts of nature into service for the joint attainment of an immaterial good and of the free self-determination of the person. It remains to be decided which has a true and which a distorted vision of Man.

By following this line of thought the extent and limits of the practical agreement on Human Rights

so often mentioned in the pages of this Introduction would become clear. It would be understood that to go beyond a mere list or enumeration of rights and to produce a true Charter determining a common way of action, the agreement must also cover the scale of values, the key in which in their practical exercise in social life, the acknowledged rights of man must be harmonized.

Thus, we must not expect too much of an International Declaration of Human Rights. Yet does it not, above all, bear witness to what the peoples await today? The function of language has been so much perverted, the truest words have been pressed into the service of so many lies, that even the noblest and most solemn declarations could not suffice to restore to the peoples faith in Human Rights. It is the implementation of these declarations which is sought from those who subscribe to them; it is the means of securing effective respect for Human Rights from States and Governments that it is desired to guarantee. On this point I should not venture to express more than the most guarded optimism. For to reach agreement, no longer merely on the definition of Human Rights, but on arrangement for their exercise in daily life the first necessity, as I have pointed out above, would be agreement on a scale of values. For the peoples to agree on the means of securing effective respect for Human Rights, they would have to have in common, however implicitly, not necessarily the same speculative concept, but at least the same practical concept, of man and life, the same "*philosophy of life*" if I may once be allowed to use the word "philosophy" in the outrageously improper sense of the popular pragmatism of today.

Does the testimony collected in this volume give grounds for hope that, despite the clash of theory, a few scanty features of such a practical ideology, sufficiently defined and resolved to be effective, are in the course of taking root in the conscience of the nations? Does it give grounds for hope that one day agreement may be reached throughout the world, not only on the enumeration of Human Rights but also on the key values governing their exercise and on the practical criteria to be used to secure respect for them? We do know that, though the crisis of civilization which rose with this century has offered to our gaze the gravest violations of Human Rights, yet simultaneously it has led the public mind to a keener awareness of those rights, and Government propaganda to pay to them - in words - the most ringing tributes. Pending something better, a Declaration of Human Rights agreed by the nations would be a great thing in itself, a word of promise for the downcast and oppressed throughout all lands, the beginning of changes which the world requires, the first condition precedent for the later drafting of a universal Charter of civilized life.

Foundations of Human Rights: The Unfinished Business

Mary Ann Glendon

The more I learned about the circumstances of the framing of the Universal Declaration of Human Rights, the more I realized that the framers had consciously left a crucial task unfinished: demonstrating that fundamental rights could be grounded in the world's major philosophical and religious traditions. This essay appeared in 1999 American Journal of Jurisprudence.

Over the two years it took them to draft the 1948 Universal Declaration of Human Rights, the eighteen members of the U.N.'s first Human Rights Commission had surprisingly few discussions of why human beings have rights or why some rights are universal.¹ After the horrors of two world wars, the need for a minimal common standard of decency seemed evident. One of the first tasks assigned to the new Commission chaired by Eleanor Roosevelt was the preparation of an "international bill of rights." The Commissioners, in haste to complete their work before the deepening Cold War made its acceptance by the General Assembly impossible, left the problem of foundations for another day.

At the Commission's first session in January 1947, China's Peng-chun Chang and Lebanon's Charles Malik did try to initiate a discussion of the premises on which such a document might be based.² Chang was a Confucian philosopher and educator who had done post-graduate work with John Dewey, and Malik was a philosopher of science who had studied with Alfred North Whitehead and Martin Heidegger. Their suggestions precipitated the Commission's first argument. The Yugoslav, French and English delegates began to wrangle over the relation between man and society.

Several other Commissioners became impatient with that sort of discussion. They just wanted to get on with the business at hand. After a time, India's Hansa Mehta broke in. She was one of two women on the Commission, a pioneering human rights activist, a crusader against British colonialism, and an advocate for women's equality. She said, "We are here to affirm faith in fundamental human rights. Whether the human person comes first or the society, I do not think we should discuss that problem now. We do not need to enter into this maze of ideology."³

Charles Malik, who had been literally called out of his Beirut classroom and pressed into public service by the government of newly independent Lebanon, had not yet perfected the suave diplomatic style for which he would later become famous. He rebuked Mrs. Mehta as a professor of the old school would chide a student, saying: "Whatever you may say, Madam, must have ideological presuppositions, and no matter how much you may fight shy of them, they are there, and you either hide them or you are brave enough to bring them out in the open and see them and criticize them."⁴

The Commission's Chair, Eleanor Roosevelt, quickly realized that the group would have to concentrate on specifics if the project was to stay on course. She steered the discussion back to the problem of organizing the group's work schedule. Thereafter, the question of foundations surfaced only sporadically. One such occasion was the presentation of a discussion draft by the Secretariat of the U.N. Human Rights Division. Australia's Colonel Roy Hodgson demanded to know what was the philosophy behind the paper:

¹ For details of the framing of the Universal Declaration, see Mary Ann Glendon, *Rights from Wrongs* (forthcoming, Random House).

² Human Rights Commission, First Session, Summary Records (FJCN.4/SR.7 p. 4).

³ Verbatim Record, from *The More Important Speeches and Interventions of Charles Malik* (Papers of Charles Malik, Library of Congress, Manuscript Division), p. 38.

⁴ *Ibid*, 44

"What principles did they adopt; what method did they follow?"⁵ John Humphrey, the Canadian head of the Human Rights Division, replied that the draft "was based on no philosophy whatsoever." It was, he said, merely a collection from existing constitutions of "every conceivable right which the Drafting Committee might want to discuss."⁶

At the very end of the drafting process, and without much discussion, the Commissioners did make a statement about the basis of human rights in the Preamble to the 1948 Declaration. The Preamble's opening line recites that "recognition of the inherent dignity and of the equal and inalienable rights of all members of the human family is the foundation of freedom, justice and peace in the world." The word "dignity" appears at so many key points in the Declaration, that many scholars believe it represents the Declaration's ultimate value. Louis Henkin puts it this way: "Eschewing—in its quest for universality—explicit reliance on Divine inspiration or on Natural Rights, the Declaration provided the idea of human rights with a universally acceptable foundation, an ur-principle, human dignity."⁷

But inquiring minds must ask what is this "dignity," and what is its basis? Its proximate source is easy to locate. The U.N. Charter professes "faith in freedom and democracy" which, according to the Charter, is grounded in another "faith"—"in the inherent dignity of men and women." That is a good deal of faith for a document that eschews divine inspiration. No wonder we find Nobel laureate Czeslaw Milosz musing ruefully about "those beautiful and deeply moving words which pertain to the old repertory of the rights of man and the dignity of the person."⁸ Milosz continues, "I wonder at this phenomenon because maybe underneath there is an abyss. After all, these ideas had their foundation in religion, and I am not over-optimistic as to the survival of religion in a scientific-technological civilization. Notions that seemed buried forever have suddenly been resurrected. But how long will they stay afloat if the bottom is taken out?"

Milosz puts the question neatly as only a poet can. Is the universal rights idea merely based on a kind of existential leap of faith? Or does it have some sturdier basis?

Such questions came to the surface when the Universal Declaration celebrated its fiftieth anniversary in 1998 amidst a barrage of attacks upon its aspiration to universality—mainly in the name of cultural relativism. Typically these assaults describe the Declaration as an attempt to universalize a particular "Western" set of ideas and to impose them upon people who were under colonial rule and thus not represented in its creation. The human rights project is dismissed as an instrument of "cultural imperialism" or "neo-colonialism."

An equally common retort is that cultural imperialism is the cry of the world's worst rights violators. That sort of response, however, is obviously inadequate: The allegations of cultural relativism and imperialism could be hypocritical or ideologically motivated, but nevertheless true. I propose therefore to take the accusations seriously.

My conclusions are as follows: (1) The Universal Declaration was an impressively, though imperfectly, multicultural document when it was adopted in 1948. It cannot be dismissed as "Western." (2) The framers of the Declaration did take account of the diversity of cultures by leaving room for a legitimate pluralism in interpreting and implementing its open-ended principles. (3) The danger of human rights imperialism is real, but its source is in the efforts of special interest groups to commandeer human rights for their own purposes, rather than in the Declaration itself. (4) The human rights project will rest on shaky foundations unless and until philosophers and statespersons collaborate on the business that the framers

⁵ Human Rights Commission, Drafting Committee, First Session (E/CNA.AC.I.SR.I, p.5).

⁶ Ibid.

⁷ Louis Henkin, "The Ideals of Human Rights: Ideology and Aspiration, Reality and Prospect," in *Human Rights Policy* (New York: S1. Martin's Press, forthcoming).

⁸ Czeslaw Milosz, "The Religious Imagination at 2000," *New Perspectives Quarterly*, Fall 1997, 32.

left unfinished.

1. Is the Universal Declaration "Western"?

Those who label the Universal Declaration "Western" base the claim mainly on two facts: (1) many of the world's peoples, especially those still living under colonial rule, were not represented in the United Nations in 1948, and (2) most of the Declaration's rights first appeared in European and North and South American documents. Those statements are correct, but do they destroy the universality of the Declaration?

Contrary to what is often suggested, the participation by developing countries in the framing of the Declaration was by no means negligible.⁹ At the U.N.'s founding conference in San Francisco conference in 1945, it was chiefly the smaller or less-developed nations who were responsible for the prominent position of human rights in the U.N. Charter. Within the eighteen-member Human Rights Commission, China's Peng-chun Chang, Lebanon's Charles Malik, the Philippines' Carlos Romulo, and Chile's Hernán Santa Cruz were among the most influential and active members. It is sometimes said that the educational backgrounds or professional experiences of widely traveled men like Chang and Malik "westernized" them, but their performance in the Human Rights Commission suggests something rather different. Not only did each contribute significant insights from his own culture, but each possessed an exceptional ability to understand other cultures, and to "translate" concepts from one frame of reference to another. Those skills, which can hardly be acquired without substantial exposure to traditions other than one's own, are indispensable for effective cross-cultural collaboration and were key to the adoption of the Declaration without a single dissenting vote in 1948.

The Declaration itself was based on extensive comparative study. The first draft, prepared by the U.N. Secretariat, was accompanied by a 408-page document showing the relationship of each article to provisions of the world's existing and proposed constitutions and declarations. When the Human Rights Commission's second draft was submitted to U.N. members for comment, responses were received from a group of nations that included Brazil, Egypt, India, Mexico, and Pakistan, South Africa, Sweden, and the United States.

Among the fifty-eight Member States represented on the U.N. General Assembly's committee which reviewed the near-final draft in the fall of 1948, there was even greater cultural and ideological diversity. This Committee on Social, Cultural and Humanitarian Affairs (known as the Third Committee) was chaired by Charles Malik. It included six members from Asia, four from the African continent (Egypt, Ethiopia, Liberia, and South Africa), plus the large Latin American contingent. Six of the "European" members belonged to the communist bloc; Islamic culture was strong in eleven; and four had large Buddhist populations. Over the course of more than a hundred meetings, the members of this large committee went over every word of the draft. Each country's representatives were given, and most of them enthusiastically seized, the opportunity to participate.

At the end of this process, Charles Malik could justly say of the Universal Declaration that "All effective cultures in the world had a creative hand in the shaping of the document...." As Malik put it, "The genesis of each article, and each part of each article, was a dynamic process in which many minds, interests, backgrounds, legal systems and ideological persuasions played their respective determining roles."¹⁰

⁹ See also Philip Alston, "The Universal Declaration at 35: Western and Passe or Alive and Universal?," *International Commission of Jurists Review* 30 (1983) 60, 61; and Johannes Morsink, *The Universal Declaration of Human Rights: Origins, Drafting and Intent* (Philadelphia: University of Pennsylvania Press, 1999), especially the concise summary of the drafting process in pp. 1-12.

¹⁰ Charles Malik, "Introduction," in O. Frederick Nolde, *Free and Equal: Human Rights in Ecumenical Perspective* (Geneva: World Council of Churches, 1968), 12.

It was, of course, true that much of the world's population was not represented in the U.N. in 1948. Large parts of Africa and Asia in particular remained under colonial rule. The defeated Axis powers, Japan, Germany and their allies, were excluded. On the other hand, subsequent actions by the non-represented countries suggest that cultural "diversity" has been greatly exaggerated where basic human goods are concerned. Most new nations adopted constitutions resembling the Universal Declaration as soon as they gained independence. Later, nearly all of these countries ratified the two 1966 Covenants based on the Declaration. In 1993, virtually all countries in the world participated in the adoption of the Vienna Human Rights Declaration which reaffirms the Universal Declaration. It is hard to dismiss this overwhelming endorsement of the principles of the Declaration as a mere vestige of the colonial mentality.

It is unlikely that any other political document in history has ever drawn from such diverse sources, or received the same worldwide, sustained consideration and scrutiny as the Declaration underwent over its two years of preparation. Despite all the wrangling that occurred over specifics, moreover, there was remarkably little disagreement regarding its basic substance. At every stage, even the Communist bloc, South Africa, and Saudi Arabia voted in favor of most of the articles when they were taken up one by one. The biggest battles were political, occasioned by Soviet concerns to protect their national sovereignty.

But what of the second objection mentioned above—the fact that several key ideas in the Declaration were initially described as rights in early modern Europe? On this point, the findings of a UNESCO philosophers' committee that included Jacques Maritain and University of Chicago philosopher Richard McKeon, are instructive. After surveying leading philosophers and religious thinkers the world over, the UNESCO group discovered to its surprise that a few basic practical concepts of humane conduct were so widely shared that they "may be viewed as implicit in man's nature as a member of society."¹¹ Freedom, dignity, tolerance, and neighborliness, they found, were highly prized in many cultural and religious traditions.

Nevertheless, the elaboration of these concepts as "rights" was a relatively modern, and European, phenomenon. So, does that give human rights a genetic taint that prevents them from being "universal"? Surely, their origin ought not to be decisive. The question should be not who had the idea first, but whether the idea is a good one; not where the idea was born, but whether it is conducive to human flourishing. Moreover, if a legal-political idea originated in one country but was widely adopted and internalized elsewhere, for how long and in what sense does it still "belong" to its country of origin? Do not all vibrant, living cultures constantly borrow from one another?

Consider the civil-law tradition which originated in ancient Rome. That tradition was in 1948, and remains, the most widely distributed legal tradition in the world.¹² The form and style of the Declaration gives it a familial resemblance, not only to rights declarations in many continental European constitutions, but to the constitutions and charters that had appeared or were soon to appear in many Latin American, African and Asian countries. Does that make all these instruments Roman? The French Civil Code of 1804 was widely copied by newly independent peoples in Latin America who admired its clarity and were inspired by its consolidation of a Revolution which had abolished the old unequal statuses of feudalism. Does that make the law of all those countries French?

And what does the term "Western" mean anyway, if it is more than an epithet? The majority of the U.N.'s membership in 1948, perhaps as many as thirty-seven countries, might have been described as "Western" in the sense of being influenced by Judeo-Christian traditions and Enlightenment thought. But how much sense does it make to lump together under a single label a group that comprises Latin

¹¹ Richard P. McKeon, "The Philosophic Bases and Material Circumstances of the Rights of Man," in *Human Rights: Comments and Interpretations* (New York: Columbia University Press, 1949), 45.

¹² See, Mary Ann Glendon, Michael Gordon, and Christopher Osakwe, *Comparative Legal Traditions*, 2d ed. (St. Paul, Minn.: West, 1994), 58-62

Americans, North Americans, East and West Europeans, Australians and New Zealanders? By the same token, such broad concepts as "Asian" or "Islamic" values are not very informative, given the great variety within traditions.¹³ As the Chinese member of the first Human Rights Commission, P.C. Chang, observed long ago, "Culturally, there are many 'Easts' and many 'Westes'; and they are by no means all necessarily irreconcilable."¹⁴

2. How can there be Universal Rights in Diverse Cultures?

Let us now turn to a more sophisticated version of the cultural-relativism critique. Assume that the UNESCO philosophers were right that a few basic norms of decent human behavior are very widely shared. Even if that is so at a general level, different nations and cultures attach quite different weights to these norms. Moreover, different political and economic conditions affect each nation's ability to bring human rights principles to life. That being so, what sense does it make to speak of universality?

That version of the cultural-relativism critique rests on a false premise shared by many rights activists and rights skeptics alike. It is the assumption that universal principles must be implemented in the same way everywhere. The Declaration's framers, however, never envisioned that its "common standard of achievement" would or should produce completely uniform practices.¹⁵ P. C. Chang stressed that point in his 9 December 1948 speech to the General Assembly urging adoption of the Declaration. He deplored that colonial powers had tried to impose on other peoples a standardized way of thinking and a single way of life. That sort of uniformity could only be achieved, he said, by force or at the expense of truth. It could never last.¹⁶ Chang and his colleagues on the drafting committee expected the Declaration's rights would be inculcated in various ways, and that over time the corpus of human rights would be enriched by these varied experiences.

The framers of the Universal Declaration also knew it was neither possible nor desirable for the Declaration to be frozen in *time*. They never claimed to have produced the last word on human rights. They expected that new rights would emerge in the future as they had in the past, and that old rights might be reformulated. That did not mean, however, that interpretation was up for grabs. They tried to provide the Declaration with safe passage through such transitions by giving it an interpretive matrix: freedom and solidarity, linked to a thick concept of personhood, and grounded in dignity.

The framers' approach was remembered by at least one distinguished international lawyer on the document's thirty-fifth anniversary in 1983. Philip Alston wrote on that occasion, "The Declaration does not purport to offer a single unified conception of the world as it should be nor does it purport to offer some sort of comprehensive recipe for the attainment of an ideal world. Its purpose is rather the more modest one of proclaiming a set of values which are capable of giving some guidance to modern society in choosing among a wide range of alternative policy options."¹⁷

By the 1970s, however, the original understanding of the Declaration was largely forgotten. And what oblivion had not erased, opportunism was eroding. The abstentions by South Africa and Saudi Arabia from the final vote approving the Declaration had been early warnings of more trouble ahead. South Africa had objected, among other things, to the word "dignity", apparently fearing its implications for the apartheid system it was then constructing. And Saudi Arabia had claimed that some of the so-called universal rights,

¹³See Amartya Sen's illuminating reflections on universality and pluralism, in "Our Culture, Their Culture," *The New Republic*, April 1, 1996, 27.

¹⁴P. C. Chang, *China at the Crossroads: The Chinese Situation in Perspective* (London: Evans, 1936), 124-25.

¹⁵Jacques Maritain, "Introduction" in *Human Rights: Comments and Interpretations*, UNESCO 00. (New York: Wingate, 1949), 16.

¹⁶P. C. Chang's speech may be found in U.N. General Assembly, 182d Plenary Session, December 10, 1948, Summary Records, p. 895.

¹⁷Philip Alston, "The Universal Declaration at 35," 60, 69.

particularly the right to change one's religion, were really just "Western" ideas. In 1948, those were isolated claims. But no sooner was the Declaration adopted than the Cold War antagonists pulled apart and politicized its provisions. That set the stage for further mischief. In 1955, the charge that some rights represented "Western" neo-colonialism resurfaced with particular vehemence at the Bandung conference, where the "nonaligned" nations found unity of a sort in shared resentment of the dominance of a few rich and powerful countries in world affairs.

3. The Deconstruction Derby

Over the 1960s and 1970s, the Declaration's framers, one by one, were departing from the world stage. The U.N. grew into an elaborate bureaucracy with more than 50,000 employees. Its specialized agencies become closely intertwined with the nongovernmental organizations that proliferated as the international human rights movement gained ground in the 1960s and 1970s. That movement in turn was deeply affected by the ideas about rights that predominated in the United States in those days.¹⁸ The movement, like the Declaration itself, attracted many persons and groups who were more interested in harnessing its moral authority for their own ends than in furthering its original purposes.

Another important development, set in motion by the Cold War antagonists, was the nearly universal habit of reading the Declaration in the way that Americans read the Bill of Rights, that is, as a string of essentially separate guarantees. Its dignity-based language of rights began to be displaced by the more simplistic kinds of rights talk that were then making great inroads on political discourse in the United States. Several features of that new, hyper-individualistic dialect had the potential to wreak havoc with the Declaration: rights envisioned without individual or social responsibilities; one's favorite rights touted as absolute with others ignored; the rights-bearer imagined as radically autonomous and self-sufficient; the trivialization of core freedoms by special interests posing as new rights.¹⁹

Thus, ironically, the charge of cultural imperialism has more credibility than it had in 1948. The global spread of hyper-libertarian, radically individualistic, sound-bite rights ideas has rendered the contemporary international human rights project more vulnerable to the label of "Western" than the Declaration ever was. Launched as a commitment by the nations to compete in advancing human freedom and dignity, the Declaration is now in danger of becoming what its critics have always accused it of being—an instrument of neo-colonialism!

For decades, the seamlessness of the Declaration has been ignored by its professed supporters as well as by its attackers. By isolating each part from its place in the overall design, the now-common misreading of the Declaration promotes misunderstanding and facilitates misuse. Nations and interest groups ignore the provisions they find inconvenient and treat others as trumps. A major casualty has been the Declaration's insistence on the links between freedom and solidarity, just at a time when affluent nations seem increasingly to be washing their hands of poor countries and peoples.

For examples of deconstruction in operation, one could do no better than to eavesdrop on the rights babble of the big U.N. conferences of the 1990s. At first glance, the U.N. might seem to be an unlikely forum for the pursuit of law reform. But its agencies and conferences have attracted numerous special

¹⁸ See generally, Mary Ann Glendon, *Rights Talk: The Impoverishment of Political Discourse* (New York: Free Press, 1991) (especially Chapter 6); Anthony Lester, "The Overseas Trade in the American Bill of Rights," *Columbia Law Review* 88 (1988) 537.

¹⁹ See generally, Glendon, *Rights Talk*. On the need for care in accepting new rights, see Philip Alston, "Conjuring up New Rights: A Proposal for Quality Control," *American Journal of International Law* 78 (1984) 607.

interest groups whose agendas have trouble passing muster in ordinary domestic political processes. Over the years, lobbyists of various sorts have acquired considerable influence in the U.N. bureaucracy, whose processes are even less transparent than those of U.S. administrative agencies.

Thus was the stage set for the U.N. and its conferences to become offshore manufacturing sites where the least popular (or least avowable) ideas of special interest groups could be converted into "international norms." These norms, though technically lacking the status of fundamental rights, could then be portrayed at home as universal standards, and imposed on poor countries as conditions for the receipt of aid.

At the U.N.'s 1995 Women's Conference in Beijing, for example, strenuous efforts were made to advance a new human rights paradigm--mainly by representatives from affluent countries. In her speech to a plenary session on the second day of the conference, U.S. First Lady Hillary Rodham Clinton gave high visibility to a misleading slogan. "If there is one message that echoes forth from this conference," she asserted, "it is that human rights are women's rights, and women's rights are human rights."²⁰ The statement was half true, but only half true. Human rights do belong to everyone. But not every right that has been granted to women by a particular nation-state has gained the status of a human right. The slogan was mainly aimed at universalizing extreme, American-style abortion rights in a world where few countries, if any, go as far as the United States and China in permitting abortions of healthy, viable unborn children.

That there might be some such demolition derby in the Declaration's future was foreseen long ago by Richard McKeon. McKeon realized what every lawyer knows: practical agreements such as those reached by the U.N. member states in 1948 are achieved only at the price of a certain ambiguity. The framers knew that the same generality that made agreement possible rendered the document vulnerable to misunderstanding and manipulation. In his UNESCO report, McKeon pointed out that different understandings of the meanings of rights usually reflect divergent concepts of man and of society which in turn cause the persons who hold those understandings to have different views of reality. Thus, he predicted that "difficulties will be discovered in the suspicions, suggested by these differences, concerning the tangential uses that might be made of a declaration of human rights for the purpose of advancing special interests."²¹ That was a philosopher's way of saying, "Watch out, this whole enterprise could be hijacked!"

In sum, the human rights project, launched as a multicultural commitment to compete in advancing freedom and dignity, is now in danger of becoming what its enemies and critics have always accused it of being—an instrument of "Western" cultural imperialism.

That irony did not escape the attention of Calcutta-born, Cambridge economist, Amartya Sen. In 1994, just before the U.N.'s Cairo Conference on Population and Development, Sen warned in the New York Review of Books that the developed nations were exhibiting a dangerous tendency to approach population issues with a mentality that "treats the people involved not as reasonable beings, allies faced with a common problem, but as impulsive and uncontrolled sources of great social harm, in need of strong discipline."²² Sen, who won the Nobel Prize for his works on inequality and world hunger, charged that international policy makers, by giving priority to "family planning arrangements in the Third World countries over other commitments such as education and health care, produce negative effects on people's well-being and reduce their freedoms."²³ In short, the whole range of human rights of poor people is at

²⁰ Steven Mufson, "First Lady Critical of China, Others on Women's Rights," *Washington Post*, September 6, 1995, p. A1.

²¹ Richard McKeon, "The Philosophic Bases and Material Circumstances of the Rights of Man," in *Human Rights: Comments and Interpretations* (New York: Columbia University Press, 1949), 35, 36.

²² Amartya Sen, "Population: Delusion and Reality," *New York Review of Books*, September 22, 1994, 62.

²³ *Ibid.* 71; see also, Reed Boland, "The Environment, Population, and Women's Human Rights," *Environmental Law* 27 (1997) 1137.

risk when special interests are dressed up as universal rights.

The good news is that as the U.N. enters a period of austerity, the era of big conferences like Cairo and Beijing is probably drawing to a close. The bad news is that the same economic pressures that are putting a damper on huge international gatherings, however, may aggravate the danger of capture of U.N. agencies by well-financed special interests. A case in point is CNN founder Ted Turner's \$1 billion "gift" to the U.N. announced in the fall of 1997. Many who look to the U.N. for leadership in humanitarian aid were overjoyed when Mr. Turner announced that his donation was to help "the poorest of the poor."²⁴ Paid out in installments of \$100 million a year for ten years, this infusion of funds would have ranked behind the annual contributions of only the U.S., Japan, and Germany.

The news seemed too good to be true. It was. It soon appeared that the U.N. would not have control over the funds. Rather, its agencies would be required to submit proposals for approval by a foundation headed by a man Mr. Turner chose because "he thinks as I do."²⁵ The man designated to have the chief say in allocating the Turner millions is former U.S. State Department official Timothy Wirth who spearheaded the aggressive U.S. population control agenda at the 1994 Cairo conference. Wirth has been so zealous in advocating population control that he has even praised China, with its coercive one-child-per-family policy, for its "very, very effective high-investment family planning."²⁶ As for Mr. Turner, he told a California audience in 1998, that in the post-Cold War world, "The real threat is no longer an army marching on us, it's people infiltrating us, you know, people that are starving."²⁷

As its details have unfolded, Mr. Turner's gesture looks less like a gift and more like a take-over bid aimed at U.N. agencies with privileged access to vulnerable populations. The next few years are thus likely to be a time of testing for the U.N. if its prestige and organizational resources are not to be, literally, for sale.

As memories fade about why the nations of the world determined after World War II to affirm certain basic rights as universal, efforts to deconstruct the Universal Declaration and remake it nearer to the heart's desire of this or that special interest group will continue. Whether the relatively rich and complex vision of human rights in the Universal Declaration can withstand the combined stresses of aggressive lobbying, heightened national and ethnic assertiveness, and the powerful, ambiguous forces of globalization, is impossible to foresee. Not only U.N. agencies, but the governments of several liberal democracies have become implicated in breaking down the connections among its indivisible rights and deconstructing its core principle, human dignity.

The Challenge of Human Rights

The contest for control of the meaning of the Declaration forcefully reminds us that the framers of the Universal Declaration left the human rights movement with a problem. As John Paul II put it in his Address to the Vatican Diplomatic Corps in January 1989, "[T]he 1948 Declaration does not contain the anthropological and moral bases for the human rights that it proclaims"(7). How, then, can one handle the problem of reconciling tensions among the various rights, or the related problem of integrating new rights from time to time?

Those problems are serious, and have led some thoughtful persons to conclude that the Declaration is hopelessly incoherent. The late Michel Villey, for example, maintained that, "Each of the so-called human

²⁴ Betsy Pisik, "Gift Keeps on Giving," *Washington Times*, January 19, 1998, p. A1.

²⁵ Barbara Crossette, "Turner Picks State Dept. Official to Allocate UN Fund," *International Herald Tribune*, November 21, 1997, 4; Colin Woodard, "Ted Turner Gift Poised to Boost UN," *Christian Science Monitor*, April 22, 1998, 1.

²⁶ Quoted in Jeffrey Gedmin, "Clinton's Touchy-Feely Foreign Policy," *Weekly Standard*, May 13, 1996, 19, 22.

²⁷ Ann Bardach, "Turner in 20007," *New Yorker*, November 23, 1998, 36, 37.

rights is the negation of other human rights, and when practiced separately generates injustices.”²⁸ Alasdair MacIntyre argues that different rights, borrowed from different traditions, often rest on different, and incommensurable, moral premises.²⁹

These problems were not overlooked by Maritain and his colleagues. Maritain noted that, “Where difficulties and arguments begin is in the determination of the scale of values governing the exercise and concrete integration of these various rights.”³⁰ The Declaration, he went on, would need some “ultimate value whereon those rights depend and in terms of which they are integrated by mutual limitations.” That value, explicitly set forth in the Declaration, is human dignity. But as time went on, it has become painfully apparent that dignity possesses no more immunity to hijacking than any other concept. One need only think of current defenses of active euthanasia in terms of “the right to die with dignity.” (There is no end, it seems, of pseudo-rights that the stronger are eager to confer upon the weaker whether the latter are willing or not.)

The shift from nature to dignity in modern thinking about the foundations of human rights thus entails a host of difficulties. The common secular understandings are that human beings have dignity because they are autonomous beings capable of making choices (Kant), or because of the sense of empathy that most human beings feel for other sentient creatures (Rousseau). But the former understanding has alarming implications for persons of diminished capacity, and the latter places all morality on the fragile basis of a transient feeling. Most believers, for their part, would say that dignity is grounded in the fact that human beings are made in the image and likeness of God, but that proposition is unintelligible to nonbelievers.

Moreover, the path from dignity to rights is not clear and straight, even for believers. Brian Benestad has pointed out that the term “dignity of the human person” has two different connotations in Christian teaching—“[it] is both a given and an achievement or an end to be gradually realized.”³¹ The Catholic Catechism, he notes, begins its discussion of morality with this quotation from Pope Leo the Great: “Christian, recognize your dignity, and now that you share in God’s own nature, do not return by sin to your former base condition.” But if dignity is a quality to be achieved by strenuous effort to overcome sin and practice virtue, then it is not altogether clear that the dignity of the rights claimant is an adequate basis for human rights. Not every rights claimant, obviously, has made strenuous effort to overcome sin. From a Christian point of view, the resolution of this dilemma may be that human rights are grounded in the obligation of everyone to perfect one’s own dignity which in turn obliges one to respect the “given” spark of dignity of others whatever they may have done with it. In other words, it may be our own quest for dignity (individually and as a society) that requires us to refrain from inflicting cruel punishments on criminals, or from terminating the lives of the unborn and others whose faculties are undeveloped or dormant.

In that light, the drafters of the U.N. Charter were prudent to say that human rights rest upon a “faith” in human dignity. It would be a mistake, however, to leap from that proposition to the notion that this faith is merely an act of will, an arbitrary choice. All in all, one may say of “dignity” in the Universal Declaration what Abraham Lincoln once said about “equality” in the Declaration of Independence: it is a hard nut to crack. The framers of the Universal Declaration were far from naive about the difficulties that lay ahead. That is evident from many statements in which they acknowledged the priority of culture over law. Though Maritain was not, strictly speaking, a framer, he said it best. Whether the music played on

²⁸ Michel Villey, *Le droit et les droits de l’homme* (Paris: Presses Universitaires de France, 1983), 13.

²⁹ Alasdair MacIntyre, *After Virtue*, 2d ed. (Notre Dame, Ind.: University of Notre Dame Press, 1981).

³⁰ Jacques Maritain, “Introduction” in *Human Rights: Comments and Interpretations*, UNESCO ed. (London & New York: Wingate, 1949), 9, 15-16.

³¹ Brian Benestad, “What Do Catholics Know about Catholic Social Thought?” in *Festschrift for George Kelly* (Christendom Press, forthcoming).

the Declaration's thirty strings will be "in tune with, or harmful to, human dignity," he wrote, will depend primarily on the extent to which a "culture of human dignity develops."³²

If Maritain, Eleanor Roosevelt, Charles Malik, René Cassin and others who held this view were right, then a great challenge faces the world's religions, for religion is at the heart of culture. Ultimately it will be up to the religions to demonstrate whether they are capable of motivating their followers to fulfill their own calling to perfect their own dignity, and in so doing to respect the dignity of fellow members of the human family.³³

³²Jacques Maritain, "Introduction" at 16.

³³Giorgio Filibeck, "Universal Religions and the Universality of Human Rights," Presentation at the Harvard Law School World Alumni Congress Panel on "Religion and Human Rights," held at the Islamic Center of Rome, Italy, June 11, 1998.